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SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN DIEGO UNLIMITED CIVIL

MIRAY ATAMIAN, Individually and On Behalf of All Others Similarly Situated,

Plaintiff,

v.

OLAPLEX, INC.; and OLAPLEX HOLDINGS, INC.,

Defendants.

Case No.: 37-2024-00018492-CU-BT-CTL

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS AND SERVICE AWARD

CLASS ACTION

Assigned for all purposes to Judge Marcella O. McLaughlin, Dept. C-72

[IMAGED FILE]

Date: July 11, 2025
Time: 9:30 a.m.
Dept.: C-72
Action filed: April 19, 2024

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I. INTRODUCTION

Plaintiff Miray Atamian ("Plaintiff" or "Atamian") moves this Court for approval of her request for attorneys' fees, costs, administration expenses and a service award ("Motion") as part of the conditionally approved class settlement in this action against defendants Olaplex, Inc., and Olaplex Holdings, Inc. (jointly, "Olaplex" or "Defendants").

The requested attorneys' fees, costs, and service award are reasonable and justified considering the fair settlement obtained for the Class and other relevant factors for the Court's consideration. Pursuant to the Settlement Agreement ("Agreement" or "Agr.," ROA # 22, Exhibit 1 thereto), Plaintiff may request up to $1,350,000 in Claims Administrator Costs, attorneys' fees, litigation costs, and an Individual Service Award, combined, to be paid by Defendants, which is to be paid separately from the award to the approximately ten million Class members who are each entitled to a $5.00 Voucher towards the purchase of an Olaplex product. Agr. § 2.3. Specifically, Plaintiff requests $292,801 for class notice and settlement administration expenses, $1,052,199 as a combined award of attorneys' fees and litigation costs, and a $5,000 service award to Plaintiff.

II. BRIEF FACTUAL AND PROCEDURAL POSTURE

Plaintiff alleges that Defendants manufactured and sold premium haircare products throughout the United States and California that are misrepresented as having been "Made in U.S.A." despite being comprised of several foreign ingredients. Complaint ("Compl.") ¶¶ 1-2, 8. As a result, Plaintiff alleges that Defendants have violated (a) California's Made in USA Statute, Cal. Bus. & Prof. Code § 17533.7 ("MUSA"); (b) California's Unfair Competition Law, Cal. Bus. & Prof. Code §§ 17200, et seq. ("UCL"); (c) California's Consumer Legal Remedies Act, Cal. Civ. Code §§ 1750, et seq. ("CLRA"); and engaged in (d) negligent misrepresentation and (e) intentional misrepresentation. *Id.* at ¶ 8. Defendants deny all liability and assert that their contract manufacturers are located in the United States.

Prior to filing suit, Plaintiff served a demand for corrective action on Olaplex, dated January 4, 2023, and later engaged in private mediation before Robert A. Meyer of JAMS on June 28, 2023, and July 3, 2023. Declaration of Jason A. Ibey ("Ibey Decl."), ¶¶ 7-8; Declaration

of Abbas Kazerounian ("Kazerounian Decl."), ¶ 8. Prior to mediation, the parties voluntarily exchanged information relating to Plaintiff's claims and estimated class size. Ibey Decl., ¶¶ 9-11. Through mediation a settlement in principle was reached relating to the settlement consideration, however, the parties continued to vigorously negotiate many other aspects of the settlement over a period of approximately eleven months, fully executing that Agreement on June 17, 2024. Ibey Decl., ¶ 10; Kazerounian Decl., ¶¶ 8-10. The settlement was not fully executed until after the Complaint was filed on April 19, 2024, prior to the expiration of a tolling agreement (Ibey Decl., ¶ 10). Defendants filed an Answer on April 30, 2024 (ROA #10), asserting twenty-one affirmative defenses.

On June 10, 2024, Plaintiff filed a notice of settlement (ROA #16). On September 6, 2024, the Court heard arguments in favor of Plaintiff's Unopposed Motion for Preliminary Approval of Class Action Settlement and Certification of Settlement Class ("Preliminary Approval Motion" or "Prelim. App. Mtn."), which was granted by order that same day (ROA #31).

Subsequently, the parties twice requested amendment to the conditional settlement approval order due to the need to extend various deadlines, including to afford non-party Amazon.com additional time to provide class notice to its online customers (ROA ## 35, 38).

On November 26, 2024, the Court issued a Second Amended Preliminary Approval Order (ROA #39), requiring Notice to commence by February 21, 2025; setting a deadline of April 22, 2025 for a motion for attorneys' fees and costs; setting a deadline for Class members to submit a claim, request exclusion or object by May 12, 2025; setting a deadline of June 6, 2025 to file a Final Approval Motion; and scheduling the Final Approval Hearing for July 11, 2025 at 9:30 am.

Since then, Class Counsel, the Claims Administrator, and Amazon.com have worked diligently to timely disseminate Notice to the Settlement Class as outlined in the Settlement Agreement and Second Amended Preliminary Approval Order. As of April 16, 2025, 82,289 persons have submitted a claim form, and the deadline to submit a claim is not until May 12, 2025. Ibey Decl., ¶ 17; Declaration of Christopher Leung ("Leung Decl."), ¶ 4.

III. REQUESTED ATTORNEYS' FEES, LITIGATION COSTS, CLASS NOTICE AND ADMINISTRATION EXPENSES AND SERVICE AWARD TOTALLING $1,350,000 SHOULD BE APPROVED AS FAIR AND REASONABLE

Plaintiff's request for $1,350,000 in Claims Administration Costs, attorneys' fees, litigation costs, and an Individual Service Award, combined, is fair and reasonable and supported by the work and expenses incurred, with a reasonable risk multiplier on the fees request. This request is to be paid by Defendants separate and apart from the award to the Settlement Class Members.

A. Public Policy Favors Awarding Attorneys' Fees and Costs to Attorneys Acting as Private Attorneys General

Courts have long recognized the need for class actions in consumer cases where recoveries are too small to warrant individual prosecution. *See Earley v. Superior Court*, 79 Cal. App. 4th 1420, 1434 (2000) (citations omitted); *see also Linder v. Thrifty Oil Co.*, 23 Cal. 4th 429, 434 (2000) ("Courts long have acknowledged the importance of class actions as a means to prevent a failure of justice in our judicial system."). Appropriate awards of attorneys' fees are necessary to ensure consumer rights are protected and defended, and a plaintiff who obtains a settlement on behalf of absent class members may recover reasonable attorneys' fees and costs incurred in litigation. *See, e.g.*, *Mills v. Electric Auto-Lite Co.*, 396 U.S. 375, 391-92 (1970) (recognizing right of class action plaintiffs who have obtained a settlement for a class to recover attorneys' fees and costs).

Individual members of the Class likely could not or would not have undertaken the substantial investigation and litigation necessary to prosecute individual claims related to Olaplex's alleged "Made in U.S.A." misrepresentations. Consequently, a class action was necessary to vindicate Class Members' rights and would "serve [an] important role in the enforcement of consumers' rights." *See In re Tobacco II Cases*, 46 Cal. 4th 298, 313 (2009). Plaintiff's claims, including those made pursuant to the CLRA, provide for the recovery of actual damages. Cal. Civ. Code § 1780. The Products that Plaintiff purchased cost only $25.50 and $28.00, respectively, excluding tax. Compl. ¶¶ 50-51. As such, recovery on an individual basis,

notwithstanding the Settlement, would likely not convince even the most litigious individual to pursue litigation on an individual basis. *See e.g.*, *Barrett v. Wesley Fin. Grp., LLC*, No. 13cv554-LAB (KSC), 2015 U.S. Dist. LEXIS 189410, at *19-20 (S.D. Cal. Mar. 30, 2015) (finding that $500 was insufficient to motivate consumers to bring individual claims in consumer case).

Contingency fee litigation is risky, including class action cases such as this one based on alleged misrepresentation where the challenged country of origin statement appears in small print on the back of the label for the Products. Compl., ¶¶ 32-33. Also, prior cases and studies are instructive on the risks associated with misrepresentation claims concerning country of origin, in particular due to the price premium analysis where experts have opined, or studies have shown, that allegedly false Made in USA representations on consumer products tend to result in a price premium of only between 1 and 6 percent of the retail price. *See* ROA # 21, p. 20. Despite these risks, Plaintiff and Class Counsel have secured meaningful relief for the Class in the form of a $5.00 Voucher to all Settlement Class Members who submit a valid and timely Claim, without the need to show proof of purchase. Agr. §§ 1.35, 3.5(a).

Defendants have already begun removing "Made in U.S.A." language from some of their Products that may contain foreign ingredients, meaning that Plaintiff's efforts have likely influenced beneficial changes to Defendants' marketing practices. Without a Settlement, Defendants would likely look to the requirement under Cal. Bus. & Prof. Code § 17533.7(b) that the product's final wholesale value can be made with up to 5% foreign ingredients before it may not include Made in USA language in California, as a potential defense. Contrarily, Plaintiff may look to the stricter federal standard under 16 C.F.R. § 323 relating to county of origin representations.

In all, public policy favors approval of the requested award of attorneys' fees and costs through the reasonable class settlement as opposed to protracted and contested litigation.

B. Legal Standard for Award of Attorneys' Fees and Costs

Attorneys' fees may be recovered in this matter pursuant to the private attorney general doctrine, which is codified in Cal. Civ. Proc. Code § 1021.5. *See Slayton v. Pomona Unified School Dist.*, 161 Cal. App. 3d 538, 541 n.1 (1984); *see also In re Portfolio Recovery Assocs.,*

LLC, No. 11-md-2295-JAH (BGS), 2014 U.S. Dist. LEXIS 8218, at *19 (S.D. Cal. Jan. 8, 2014) (refusing to dismiss a prayer for attorneys' fees under Cal. Civ. Proc. Code § 1021.5 in TCPA matter and noting that award of attorneys' fees in other cases involving federal law have been approved under § 1021.5). This doctrine is often invoked in actions involving the UCL, such as this instant case. *See, e.g.*, *Walker v. Life Ins. Co.*, No. CV 10-9198 JVS (JDEx), 2021 U.S. Dist. LEXIS 252938 (C.D. Cal. June 7, 2021) (awarding attorneys' fees pursuant to § 1021.5 in class action settlement involving UCL). Attorneys' fees and costs are also awardable under Cal. Civ. Code §§ 1782(a).

The Settlement provides reasonable monetary relief to the Class. Each person who submits a timely and completed Claim Form is entitled to a $5.00 Voucher towards the purchase of an Olaplex product. Agr. § 1.35, 3.5(a). And there is no limit on the number of persons who may submit a claim, subject only to the provision of one claim per person. *Id.* at § 2.1. Indeed, the Voucher is as good as using cash on Defendants' website and its use is not contingent upon any condition other than the submission of a valid and timely Claim Form (e.g., a customer need not make a purchase of a certain sum before being able to apply the Voucher on Defendants' website).

The Complaint alleges that Plaintiff purchased Olaplex Products believing them to be made in the United States of America given the existence of the "Made in U.S.A." representation on the Products' labeling. Compl. ¶¶ 32-34. Were Plaintiff to prevail in this suit, she would arguably be entitled to damages based on the difference between the amount actually paid for the Products and the amount she should have paid for the Products in the market absent the alleged "Made in U.S.A" misrepresentation. *See Pulaski & Middleman, LLC v. Google, Inc.*, 802 F.3d 979, 989 (9th Cir. 2015). The burden imposed on Plaintiff to prove her claims is not proportional to her minimal recovery.

C. Requested Attorneys' Fees and Costs are Supported by the Lodestar Approach Based on a Reasonable Risk Multiplier of Approximately 3.45

Plaintiff's lodestar of $350,944 (which includes a reasonable estimate of additional hours through the Final Approval Hearing and completion of the case), and expenses incurred as of

April 15, 2025, support the requested attorneys' fees and costs are fair and reasonable.[1] Ibey Decl., ¶¶ 18-28; Kazerounian Decl. ¶¶ 11-30; Declaration of Gil Melili ("Melili Decl."), ¶¶ 7-19.

1. Expenses of $36,293.61 so far were reasonable incurred

Class Counsel are requesting reimbursement of current expenses of $36,293.61, as well as costs that may be reasonably incurred through completion of the Settlement.[2] Ibey Decl., ¶¶ 24-25, Exhibit 2 thereto (costs summary). These costs include, for example, combined mediation fees ($10,375.00), payment to Amazon to locate class member data and provide their own class notice to Amazon customers in response to Plaintiff's subpoena ($20,000.00), expert consultation services ($2,000.00), and various other expenses (e.g., OneLegal filing fees, charges for legal research on LexisNexis, postage, printing, and travel). Ibey Decl., ¶ 25, Exhibit 2 thereto. Such expenses are relevant and necessary for this litigation. *See, e.g.*, *In re Immune Response Sec. Litig.*, 497 F. Supp. 2d 1166, 1177-78 (S.D. Cal. 2007) (finding that costs such as filing fees, photocopy costs, travel expenses, postage, telephone and fax costs, computerized legal research fees, and mediation expenses are relevant and necessary expenses in class action litigation). While Class Counsel expect to incur additional costs through at least the July 11, 2025, final approval hearing, Class Counsel will not seek more than $1,052,199 in combined attorneys' fees and costs.

2. The requested attorneys' fees should be approved

California courts, in exercising broad discretion to determine the appropriate fee may base their calculations on the "lodestar" and "multiplier" method. *See Press v. Lucky Stores, Inc.*, 34 Cal. 3d 311, 322 (1983); *Serrano v. Priest*, 20 Cal. 3d 25, 48-49 (1977) ("*Serrano III*"). Pursuant to the lodestar method, the court computes the "lodestar" amount by multiplying the number of hours reasonably expensed by each attorney or legal staff member by their reasonable hourly rates. *See Serrano III*, 20 Cal. 3d at 48; *Lealao v. Beneficial Cal., Inc.*, 82 Cal. App. 4th

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[1] Were the Court not to count time incurred by support staff, such as law clerks, secretaries, and paralegals, the pure "attorney" lodestar would be $344,645. Ibey Decl. ¶ 24, n. 3.

[2] It is currently anticipated that Plaintiff's costs will not exceed $45,000. *Id.* at ¶ 25.

19, 26 (2000). However, "the lodestar formula does not limit consideration to hours expended and hourly rate, though that is the foundation of the calculation." *Id.* at 40. The court then enhances the lodestar figure by a "multiplier" to account for a range of factors, such as the novelty of the case, its contingent nature, skill displayed by class counsel, and the degree of success achieved. *Serrano III*, 20 Cal. 3d at 49; *see also Lealao*, 82 Cal. App. 4th at 26; *Thayer v. Wells Fargo Bank*, 92 Cal. App. 4th 819, 834 (2001) ("[t]here is no hard-and-fast rule limiting the factors that may justify an exercise of judicial discretion to increase or decrease a lodestar calculation").

The award of attorneys' fees requested by Class Counsel is permitted by statute. Pursuant to Cal. Civ. Code § 1780 of the CLRA and Cal. Civ. Proc. Code § 1021.5, Plaintiff may recover reasonable attorneys' fees and costs incurred in this litigation.[3] While attorneys' fees are not generally awarded under the UCL, "if a plaintiff prevails in an unfair competition law claim, it may seek attorney fees as a private attorney general pursuant to Code of Civil Procedure section 1021.5." *Walker v. Countrywide Home Loans, Inc.*, 98 Cal. App. 4th 1158, 1179 (2002).

The relief contemplated by the Settlement in this matter will benefit the California and American public at large. Specifically, Settlement Class Members who submit a valid and timely Claim are each entitled to a $5.00 Voucher. Agr. §§ 1.35, 3.5(a). To submit a valid and timely Claim, all Settlement Class Members must do is submit a Claim Form providing the Claims Administrator with basic contact information, including name, address, and email address, and a statement certifying purchase. *See* Exhibit E to Agr. There is no proof of purchase requirement nor is there any limit on the number of Claims that Defendants may be obligated to pay, except that Settlement Class Members are limited to submitting one Claim per person. Agr. §§ 2.1, 3.5(a).

[3] "An award of attorneys' fees under [this] theory is appropriate when . . . the necessity of pursuing the lawsuit placed a burden on plaintiff out of proportion to his individual stake in the matter." *Schmid v. Lovette*, 154 Cal. App. 3d 466, 478-79 (1984) (internal citations omitted).

Class Counsel here request $1,052,199 in attorneys' fees and costs combined, which currently works out to approximately $1,015,905.40 in attorneys' fees and $36,293.61 in costs. Ibey Decl., ¶¶ 18-27. Given the estimated more than 10 million Settlement Class Members whom Olaplex may be obligated to pay, the maximum potential value brough to the Class is approximately $50 million in Vouchers, which mean Class Counsel is only requesting 2.03% of that total value as a fee award.[4] Ibey Decl., ¶ 27. *See generally*, *Lealao*, 82 Cal. App. 4th at 49-50 (holding that "in cases in which the value of the class recovery can be monetized with a reasonable degree of certainty and it is not otherwise inappropriate, a trial court has discretion to adjust the basic lodestar through the application of a positive or negative multiplier where necessary to ensure that the fee awarded is within the range of fees freely negotiated in the legal marketplace in comparable litigation.").

Courts have approved similar requested awards in consumer class actions. *See Shankula v. Ticketsonsale.com, LLC*, 2023 Ill. Cir. LEXIS 1, at *10 (Dupage Cnty., Ill. Jan. 31, 2023) (awarding attorneys' fees and costs of $1,366,667 in consumer class settlement not involving a common fund); *Chavez v. Netflix, Inc.*, 162 Cal. App. 4th 43, 47 (2008) (affirming trial court's award of $2,040,000 to class counsel in a class action settlement providing one month of free DVD rental services or upgrades to class members who submitted valid claims).

Further, a reasonable risk multiplier is appropriate here (as explained below), where the action was taken on a contingency fee basis in this risky litigation and Class Counsel have not been paid anything to date for the time and expenses they have incurred of over $36,000 since December of 2022 related to this case. *See* Ibey Decl. ¶¶ 18-27.

i. Counsels' fee request amounts to a reasonable 3.45 multiplier

Once the lodestar is fixed, the court may, in its discretion, increase or decrease that amount by applying a positive or negative "multiplier." *Lealao*, 82 Cal. App. 4th at 26. As explained above, in applying a risk multiplier, courts look at various factors, such as the novelty

[4] $5.00 Voucher x 10,000,000 Class members = $50,000,000. And, $1,015,905.40 / $50,000,000 = Approx. 2.03%.

of the case, its contingent nature, skill displayed by class counsel, and the degree of success achieved. *See id.*; *Roos v. Honeywell International, Inc.*, 241 Cal. App. 4th 1472, 1491 (2015); *Serrano III*, 20 Cal. 3d at 49; *Thayer*, 92 Cal. App. 4th at 834.

The Agreement does not set a specific amount for attorneys' fees but instead sets an upper limit of $1,350,000 for attorneys' fees and costs, Claims Administration Costs, and a $5,000.00 service award to Plaintiff, combined, to be paid by Defendants. Agr. §§ 2.3-2.4. Based on 568.50 hours of work since approximately December of 2022 (which includes a reasonable estimate of additional hours though final approval and overseeing settlement administration), with a combined lodestar of $350,944, the attorneys' fees requested here amounts to a reasonable 3.45 multiplier.[5] Ibey Decl., ¶ 26. *See, e.g.*, *Van Vranken v. Atl. Richfield Co.*, 901 F. Supp. 294, 298-99 (N.D. Cal. 1995) (holding that multiplier of 3.6 was "well withing the acceptable range for fee awards in complicated class action litigation" and that "[m]ultipliers in the 3-4 range are common"); *see also Cotchett, Pitre & McCarthy v. Universal Paragon Corp.*, 187 Cal. App. 4th 1405, 1423 (2010) (approving a multiplier of more than seven times lodestar after considering all the circumstances of the case, including the resulting settlement).

The multiplier is reasonable in light of Class Counsel's efforts in this case and the benefits conferred on Class Members without years of protected litigation. As noted above, prior to filing suit, Plaintiff served a pre-litigation demand on Olaplex. Compl. ¶ 107. Plaintiff, through counsel, then attended two mediation session before experience mediator Robert A. Meyer of JAMS. Kazerounian Decl., ¶ 8; Recital B to Agr. Additionally, Class Counsel spent time and effort in obtaining information from Defendants pertaining to Plaintiffs' claims, including information on the approximate size of the putative classes, and worked with an expert economist to help assess Defendants' potential liability in this case. Ibey Decl. ¶¶ 7-14.

Prior to executing the Settlement, which required many months of hard-fought negotiations following mediation, including the long-form agreement and the several exhibits thereto, the Complaint was filed before a tolling agreement with Olaplex expired. Once the

[5] $350,944 / 1,015,905.40 = Approx. 0.345

Settlement's terms were finalized and the Agreement was fully executed, Plaintiff promptly engaged in motion practice to seek confidential settlement approval. This includes substantial legal research to prepare a 50-state survey on the relevant laws of the several states, given that this is a nationwide settlement.

Consequently, Class Counsel expended significant time in reaching the proposed class action Settlement, which provides Class Members with reasonable relief commensurate with the alleged harm and risks and expense of contested litigation. This matter was also taken on a contingency fee basis and Class Counsel have been paid nothing to date for their work since December of 2022, nor have they been reimbursed for their expenses exceeding $36,000. Ibey Decl., ¶ 27.

Therefore, a risk multiplier of approximately 3.45 is reasonable and appropriate considering the circumstances of this contingency fee litigation.

Dated: April 21, 2025

Respectfully submitted,
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By: _____
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